

Development Office

STAFF REPORT
“Polk Addition”
Summation

Preliminary Plat Process

CASE NUMBER: UDC-13-00130
FILE CODE: POLK-P
PREPARED BY: Donna Ferguson
MEETING May 6, 2013 – Planning Commission
DATES: May 13, 2013 – City Council

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Application
- Preliminary Plat Map
- Traffic Worksheet
- Transportation Network Plan – N/A (No new streets proposed)
- Drainage Study
- Open Space Worksheet - N/A (Civic open space not required in LI zone district)
- Environmental Impact Assessment
- Revised Preliminary Plat Map (4/25/2013)

RECOMMENDATION: The Development Office recommends approval of the Preliminary Plat pursuant to the review criteria outlined in Article 2, Section 2.1.2.d (1-8) of the Cheyenne Unified Development Code (UDC).

STAFF REPORT UPDATE (05/06/13): At its regular meeting Monday, May 6, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Preliminary Plat by a unanimous vote of 3 to 0. The recommendation was made pursuant to the criteria outlined in Article 2, Section 2.1.2.d of the UDC.

STAFF REPORT
“Polk Addition”

Preliminary Plat Process

CASE NUMBER:	UDC-13-00130	File Code:	POLK-P
PREPARED BY:	Donna Ferguson		
SUBMITTED:	April 1, 2013		
PRE-APP MEETING:	January 17, 2013		
MEETING DATES:	May 6, 2013 – Planning Commission May 13, 2013 – City Council		
OWNER:	Michel Simon Winsome Capitol Group LLC 4 Pine Spring Lane Owing Mills, MD 21117		
APPLICANT:	Doug Walker 6908 Foxgrove Road Cheyenne WY 82009 421-4265		
AGENT:	Brad Emmons AVI p.c. 1103 Old Town Lane, Ste 101 Cheyenne, WY 82009 778-8236		
WORK DESCRIPTION:	Platting of three lots and street vacations for Light Industrial use		
DOCUMENTS:	Application, Preliminary Plat Map, Traffic Worksheet, Drainage Study, Environmental Impact Study, Revised Preliminary Plat Map		
OTHER:	Adjacent property owners were notified by mail		
LEGAL:	A replat of Tracts 145-148, Sunnyside Addition, 5 th Filing, Cheyenne, Wyoming		
LOCATION:	Northeast corner of East Pershing Boulevard and Polk Avenue		
PROPERTY SIZE:	8.9 acres		
CURRENT ZONING:	Agricultural Residential (AR)		
PROPOSED ZONING:	Light Industrial (LI)		
LAND USE:	Vacant		
PROPOSED LAND USE:	Storage units (Storage Park)		

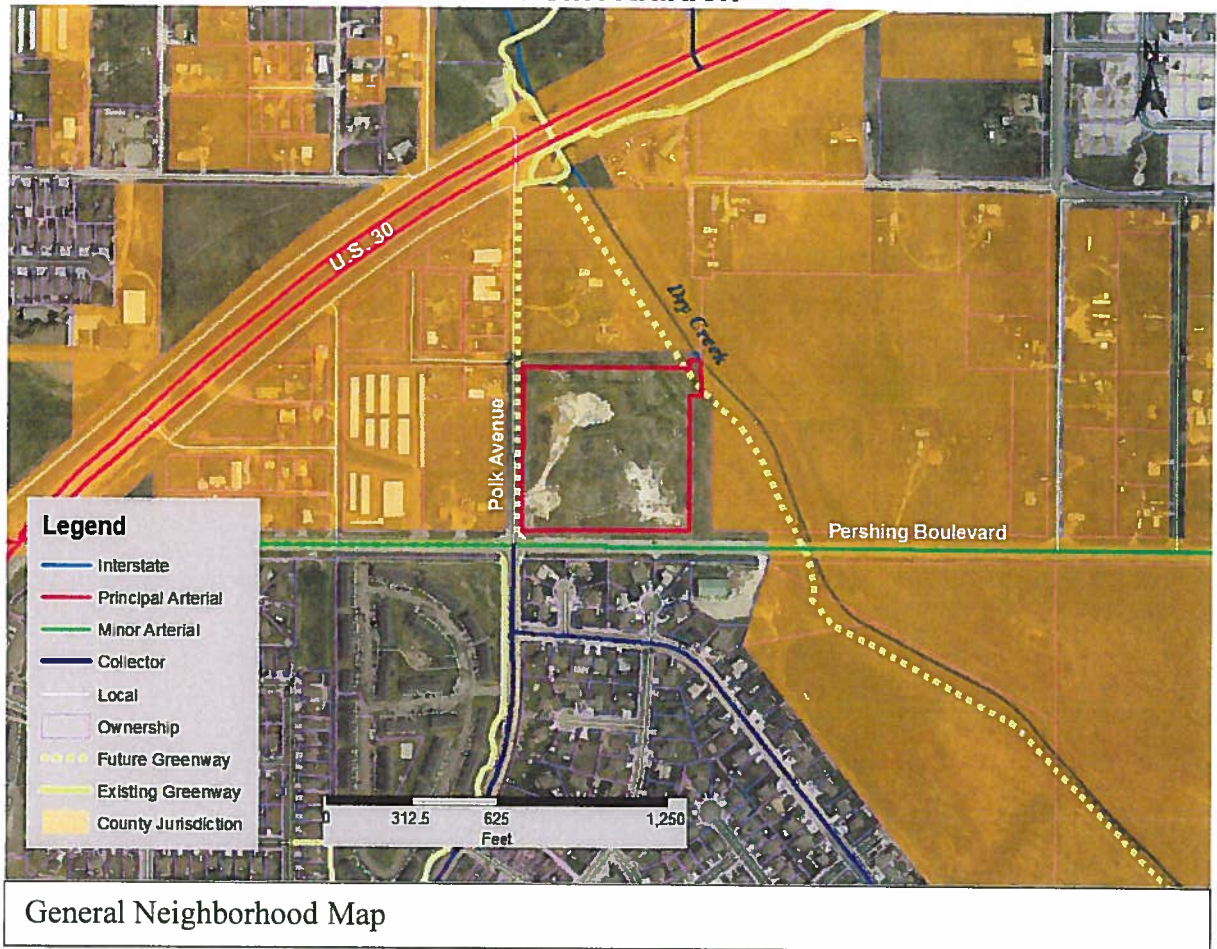
SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
West	Rural Residential, Storage Park, Single-Family Residential, Vacant Commercial	AR, PUD, MU	County
North	Rural Residential	AR	County
East	Rural Residential	AR	County
South	Single-Family Residential	MR-2	City

SUMMARY:

This Preliminary Plat proposes to subdivide a total of 8.90 acres, consisting of 8.02 acres of vacant property and .88 acres of vacated portions of Van Buren Avenue and Cheyenne Street. The subject property is located on the northeast side of the City on the northeast corner of Polk Avenue and Pershing Boulevard and was annexed to the City in 2005 with Agricultural Residential (AR) zoning. The Preliminary Plat is being requested in conjunction with a proposal to construct commercial storage facilities on the site and to change the zoning from Agricultural Residential (AR) to Light Industrial (LI). The street vacation is proposed to take place at the time of the Final Plat and will require that all property owners abutting the proposed vacated streets to submit the necessary map and paperwork. In addition, a Greenway path is planned to run north/south along the east side of Polk Avenue and along the west side of the subject property. A Plan Review for the Polk Avenue Road and Greenway project has been submitted and is currently under review by the City's Engineering Department. The applicant has expressed a willingness to dedicate up to 10' of additional right-of-way toward the development of the projects Greenway. Furthermore, the applicant is aware that he will be required to reimburse the City for 50% of Polk Avenue's Road and Greenway construction costs for the portion of the road path which is adjacent to the subject property. The construction of the storage park is proposed to be completed in phases; beginning with the buildout of the north lot and then moving south down the property. The applicant is proposing to install sanitary sewer lines, a detention pond and water lines for the property before the City begins construction of the Polk Avenue Road and Greenway. An expectation of right-of-way improvements along Pershing Boulevard has been communicated to the applicant. The details of the expected right-of-way improvements along Pershing Boulevard will be determined during the site plan review process of the south lot. In order to accommodate the storage park land use on this property, the applicant is requesting a zone change to LI. While the future land use map does not indicate an LI zone district for this parcel, an LI zone district can be supported based on existing development patterns and geographical features of the area. Similar land uses, as the one proposed, are located to the west of the property and U.S. 30, Pershing Boulevard and Dry Creek provide buffers between the proposed use and the existing residential uses in the area making a zone change to LI supportable. Minimum required Civic Open Space is not required in the LI zoning district thus none is being pursued with this application. However, the final plat will require payment of Park Development fees.

"Polk Addition"



PRELIMINARY PLAT DATA:

The applicant is proposing to subdivide a total of 8.90 acres which consists of 8.02 acres of vacant property and .88 acres of vacated portions of platted, but not built, rights-of-way located north and east of the subject property into three lots. These lots would be platted horizontally down the property. The north lot is proposed to be 3.77 acres, the middle lot 2.55 acres, and the south lot 2.58 acres. The applicant has stated that this lot arrangement has been proposed in order to facilitate financing. This preliminary plat is being requested in conjunction with a proposal to construct commercial storage facilities on the site and to change the zoning from Agricultural Residential (AR) to Light Industrial (LI). After review of a Traffic Worksheet by the City's Traffic Engineer it was determined that the Traffic Study requirement could be waived. However, if development occurs in a manner which does not keep with the land use assumptions provided in the Traffic Worksheet a TIA or TIS may be required. With this application, a Drainage Study as well as an Environmental Impact Assessment were required and submitted. Because no new streets were proposed with this application, a Transportation Network Plan was not required. Also, because the proposed LI zoning district does not have a Civic Open Space requirement, an Open Space Worksheet was not required.

PRELIMINARY PLAT ANALYSIS:

The subject property is contained within the City's Urban Service Boundary (USB). ShapeCheyenne, the City's land use plan, defines the USB as the major growth area for the community where urban scale development should be located. The 8.9 acre parcel is square in shape and measures approximately 618'x 626'. The parcel is located on the northeast side of the City along Pershing Boulevard and east of Polk Avenue. To the west, U.S. 30 crosses Pershing Boulevard at a 45 degree angle which chops the area into a triangle and creates a physical barrier between the subject property and the residential land uses to the north. Dry Creek cuts along the northeast corner of the subject property and as a result portions of this corner reside in a FEMA floodway or a 100-year FEMA floodplain.

Also present within this area are Greenway paths. These paths are part of the Greater Cheyenne Greenway project which is administered by the Parks and Recreation Department. The Greenway is a ten-foot wide detached path. It serves as a safe and accessible recreational corridor for the citizens of Cheyenne. In this part of the City, a Greenway path is planned to run north/south along the east side of Polk Avenue and along the west side of Dry Creek. The paths will serve to connect the City's northern and southern Greenway paths on the east side of the City.

The applicant has expressed a willingness to dedicate up to 10' of additional right-of-way toward the development of this Greenway. However, it is the desire of the applicant to dedicate only the minimum necessary and is willing to include additional easements for storm water drainage if this will reduce the amount of dedicated land necessary for the Greenway. Additionally, the applicant is aware that they will be required to reimburse the City for 50% of the Greenway path's construction costs for the portion of the Greenway path which is adjacent to the subject property as this is part of the applicant's share of required right-of-way improvements. It is expected that reimbursement will occur after the Greenway path is constructed and that the details of the reimbursement arrangement will be finalized before the Final Plat.

A vacation of a portion of Van Buren Avenue to the east, a 50' right-of-way, is being requested with this application. A portion of Van Buren to the north of the subject property has already been vacated. This is because Dry Creek cuts across this area of land making an at grade street connection in this area undesirable. Vacating the remainder of Van Buren along the east side of the subject property south to Pershing would not appear to have negative impacts on the City's street network system or the adjacent property located to the east of the subject property as the City does not have plans to connect Van Buren Avenue to the north and the property to the east will continue to have access to their property from an established egress/ingress off of Pershing Boulevard.

The vacation of Cheyenne Street to the north, a 60' right-of-way, is also being requested. Like the vacation of Van Buren Avenue, the vacation of Cheyenne Street would not appear to have negative impacts to the City's street network system, however, it may have a negative impact on the adjacent property owner located to the north of the subject property. While the entirety of this northern property is under one ownership, the property is platted in a vertical pattern which is perpendicular to Cheyenne Street. At the present time, the platted yet unbuilt, Cheyenne Street provides the only possible access for the platted lots not adjacent to Polk Avenue. Thus, vacating Cheyenne Street would take away a formal city street access for the majority of the lots under this ownership.

A separate Vacation Map will be required in order facilitate the street vacations of Van Buren Avenue and Cheyenne Street. This will require all abutting property owners of the proposed vacated streets to submit the necessary map and paperwork to complete the street vacation process. The street vacation process will have to take place before or concurrently to the Final Plat but in no case will the Final Plat Map be signed before the street vacation is complete.

The applicant is proposing to construct a storage park on the property. A storage park is defined in the UDC as a Service Use where individual units accessed independently from the exterior of a building through garage bay doors are offered for rent or lease for the storage of personal property.

The preliminary plat proposes five different easements for the property. A 60' access, drainage and utility easement where the Cheyenne Street vacation is to occur. A rectangular drainage easement on the northeast corner of the property near Dry Creek and three 20' utility easements; One along the entire eastern side of the property, one along the south side of the north lot and another one which runs west-east across the middle of the south lot.

The applicant proposes to develop their access into the property along Polk Avenue at the bottom boundary of the north lot. Also, according to the applicant, the 60' access, drainage and utility easement is being provided so that the property owner to the north can have access to their internal lots and to provide storm water and other utility services to the area. The applicant will also be responsible for developing sewer and water along Polk Avenue. The applicant is expected to request reimbursement from adjacent properties for any utilities installed and as such should file for reimbursement with the City accordingly.

The construction of the storage park is proposed to be completed in phases; beginning with the buildout of the north lot and then moving south down the property. The applicant is proposing to first install the north lot sanitary sewer line, the detention pond and the water line before the City's construction of Polk Avenue and the Greenway path begins. The installation of the sanitary sewer line on the south lot is dependent upon future development actions and is proposed to be installed, if at all, at the time of the lot's buildout. It appears that the water and sanitary sewer lines are designed to accommodate future connection by other homes in the immediate vicinity. Additionally, the applicant is aware that they will be required to reimburse the City for 50% of Polk Avenue's road construction costs, including access approaches, for the portion of Polk Avenue which is adjacent to the subject property. It is expected that reimbursement will occur after the road is constructed and that the details of the reimbursement arrangement will be finalized before the Final Plat.

An expectation of right-of-way improvements along Pershing Boulevard has been communicated to the applicant. The details of the expected right-of-way improvements will be determined at the time of the site plan of the south lot.

The subject property was annexed to the City in 2005 with Agricultural Residential (AR) zoning and has not been rezoned since that time. Adjacent to the subject property and to the west, north and east are AR zone districts which contain single-family homes on rural lots within County bounds. To the south of the subject property and across Pershing Boulevard lies a Medium Residential-Developing (MR-2) zone district within City bounds which is made up of single-family homes on suburban lots.

The AR zone district is intended for agriculture and residential uses on large lots that typify a rural lifestyle. All uses require little or no public infrastructure in the short term, or rural level standards in the interim or long term. The regulations are designed to protect the essentially open rural character of the district and to enable a range of accessory agriculture uses in association with rural living.

The MR-2 zone district is intended for a mix of density and dwelling types within a neighborhood. All uses require full access to public infrastructure and city services. The regulations are designed to protect the neighborhood character of the district and to protect the primarily residential use of land.

ShapeCheyenne, the City's future land use plan, provides a land use framework for future development in the Cheyenne Area. The future land use plan designates this specific area as Urban Residential, the area to the west as Mixed-Use Commercial Emphasis and the area to the east as Open Space & Parks due to the location of Dry Creek and the associated floodplain.

The Urban Residential category allows for a broad variety of residential types, including single-family residences, duplexes, patio homes, townhomes, condominiums, and apartments. The Mixed-Use Commercial category is intended to promote a range of land uses, with primarily retail, office, light industrial and live/work designed as an "activity center" and the Open Space & Parks category allows for public and private parks, country clubs and golf courses.

The requested storage park land use is permitted by right in the Light Industrial (LI) and Heavy Industrial (HI) zoning districts and permitted after conditional discretionary review in the Community Business (CB) and the Mixed-Use Employment (MUE) zoning districts. In order to accommodate the storage park land use on this property, the applicant is requesting a zone change to LI.

The LI zone district is intended for environmentally controlled manufacturing or intensive employment uses that may have accessory commercial, service or office uses, but which can not readily fit into other general business or mixed-use areas due to the nature or intensity of operations. The uses and building and site designs associated with uses in this district produce little or no impacts beyond the property lines. This district is applicable to larger land areas that are capable of providing substantial buffers to adjacent sites, buildings, and land uses to minimize the potential for incompatible and negative impacts of uses in the district.

While LI is not an applicable zone district in the Urban Residential category, this property is located within an area that could support an LI zone district based on the existing development pattern and geographical features of the area. To the west reside commercial and mixed-use land uses, which include a storage park, while a majority of the land to the east resides in a flood zone or flood plain and is not suitable or likely to be highly developed. Also, the subject property is separated from residential neighborhoods by U.S. 30 and Pershing Boulevard and its proposed use should produce little or no impact beyond its property line. Furthermore, the applicant is proposing a use for the property that will serve the discretionary needs of a number of residential neighborhoods. The location of the subject property to similar land uses and to built and natural land features which provide buffers from residential areas makes it appropriate for an LI zone district designation.

Pursuant to Article 5, section 5.5.1d, there are no lot area, lot frontage or building height zoning requirements in the LI zoning districts. However, this zoning district does have a 25' setback requirement for all properly lines adjacent to streets and a maximum lot coverage requirement of 85%. The proposed preliminary plat will be able to meet these requirements.

Pursuant to Article 4, Section 4.4.2, the Open Space requirement applies to all plat applications in order to designate areas of lots or parcels of land as non-buildable areas that will serve public or civic purposes that support the overall development pattern. Minimum required Civic Open Space is not required in the LI zoning district thus none is being pursued with this application.

Pursuant to Article 4, Section 4.2.5, platting in the City requires the assessment of Park Development fees. The fees are considered an impact fee for development. The assessment of fees is made in association with an approved Final Plat. Fees listed apply to either first time plats or replats, but fees shall not be duplicated for the same parcel. A development agreement or other mechanism may be used to clarify reimbursement of fees.

The final plat will require payment of Park Development fees as outlined below and are subject to change.

Land Acquisition Fee	\$350 x	8.9 acres (minus dedicated prop.)	=	3,115
Infrastructure Fee	\$350 x	8.9 acres	=	3,115
Total Due w/ Plat				<u>6,230</u>
Enhancement Fee	\$1,100 x	8.9 acres	=	9,790
Total Due w/ Building Permit				<u>9,790</u>
TOTAL PARK FEES				<u>16,020</u>

A Plan Review for the Polk Avenue Greenway project has been submitted and is currently under review by the City's Engineering Department. For the section of Polk Avenue which runs between Pershing Boulevard and Cheyenne Street the plan proposes to construct a street which is offset to the west. The design calls for a 12' wide area on the west side of Polk Avenue for a future tree lawn and pedestrian area, two 14' wide travel lanes and a 20' wide area on the east side of Polk Avenue to accommodate the greenway, a tree lawn and a utility pole line.

The 10' wide Greenway path is proposed to meander as opposed to run in a straight course along the east side of Polk Avenue within a 20' wide area. Because the path will meander it will cause the tree lawn located on each side of the path to vary in width, making the distance between the edge of the path and the back of curb as little as 0' in some places.

In order to ensure the safety and comfort of Greenway path users from conflict with the utility pole line and to ensure that the tree lawn on both sides of the path can be properly maintained and planted with trees, a minimum width of 5' should be maintained between the meandering path and the rights-of-way boundaries. This would require a right-of-way dedication of 10' from the property owner.

PRELIMINARY PLAT REVIEW CRITERIA ANALYSIS:

In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

1. The application is in accordance with the development policies and physical patterns identified in PlanCheyenne.

While the proposed zone district and use are not consistent with the land use plan for this particular parcel, the use and the zone district can be supported based on the context of the existing land use patterns to the west and the general intent of their respective zone districts. The subject property is located within the Urban Service Boundary which outlines where urban development in the community should occur. A change in the future land use designation for this parcel may be warranted and an update to ShapeCheyenne considered.

2. The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.

Existing land uses to the west of the subject property consists of commercial and mixed uses. Also, the lot is largely separated from residential uses by major roadways to the north and south and Dry Creek to the east. Additionally, the lots are large enough to provide any necessary buffers to mitigate any potential land use conflicts between it and adjacent uses. The application proposes a lot and utility layout that is compatible with existing development.

3. The division of land meets the purposes, intent, and all applicable standards in Article 4.

The proposed Preliminary Plat is expected to meet the purposes, intent and all applicable subdivision standards outlined in Article 4. The Preliminary Plat proposes an appropriate block and lot design, a utility plan and open space system. It is also expected to provide for necessary right-of-way improvements and the required Park Development fees.

4. Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.

The application proposes a phasing plan which is reasonable for the subject property, is complimentary to adjacent property owner to the north and east and is compatible with the future buildout of Polk Avenue and the Greenway path.

5. The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.

After a review of a traffic Worksheet by the City's Traffic Engineer it was determined that the Traffic Study requirement could be waived. However, if development occurs in a manner which does not keep with the land use assumptions provided in the Traffic Worksheet a TIA or TIS may be required. With this application, a Drainage Study as well as an Environmental Impact Assessment were required and submitted. Because no new streets were proposed with this application, a Transportation Network Plan was not required. Also, because the proposed LI zoning district does not have a Civic Open Space requirement, an Open Space Worksheet was not required.

6. All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.

The subdivision of land will result in buildable lots in accordance with the intent and standards of the proposed LI zone district. The site design is expected to meet both the intent and applicability statement of the proposed LI zone district and be developed in a manner to reduce land use conflicts.

7. The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.

It does not appear that the application will create any undue influence on existing or potential development for adjacent property owners. Adjacent property owners should be able to access and develop their property according to the City's land use plan and the standards of the existing zone district.

8. The application is not harmful to the public health, safety, and welfare.

Approving the proposed Preliminary Plat will not harm the public health, safety or general welfare.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

Board of Public Utilities

All water and sanitary sewer utilities have to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

If surrounding property owner who may wish to have water and sewer taps to be stub-out to their property line for future use. They must apply at the BOPU for the water / sewer permit and coordinate the installation with the Owner / Developer. These services need to be show on the Site Plan, Plan and Profile. These services cannot be used unless the property owner either completes City Annexation or has the appropriate User Agreement meeting the approval of the BOPU and the City of Cheyenne Governing Body.

All BOPU's water and sewer utilities shall be located in the City of Cheyenne Street Right-of-Ways or have the appropriate easements record at the Clerk of Laramie County Real Estate Office or the easements need to be shown on the recorded plat.

III. F. Easements: Appropriate easements for water and sanitary sewer utilities that are not located or constructed within the roadway or Public Right of Way must be provided. The easement width shall be for no less than 20 feet for one utility main located in the center of the easement and shall be no less than 30 feet wide when two utility lines are constructed in parallel and are centered within the easement. The BOPU reserves the right to require wider utility easements for unique situations (such as, but not limited to, a 40-foot wide easement when constructing a water and/or sewer main between two buildings or when multiple utilities are located within the same easement or when the utility is in excess of 10 feet deep). In addition, no other utility shall be placed within 10 feet (horizontally) of the water and or sanitary sewer main.

City Surveyor

1. Boundary data and legal descriptions appear in order.
2. This project proposes to vacate Cheyenne St. and Van Buren Ave. as previously annexed to the City. With the proposed vacation of public right of way, half of the vacated public right of way area (City annexed) will be conveyed to the adjoining landowners who are in the County. Thus we will be creating a situation where these adjoining land owners have their current property zoned and taxed in the County, and the proposed newly acquired strip of vacated right of way in their ownership zoned and taxed as City. Can this in fact be done, and are the adjacent landowners being informed and requested to concur with the proposal? I do not see this in the application or accompanying reports.

Note: vacation application will accompany the Final Plat when submitted.

1% Construction

Soils have been dumped on site and grading has already commenced. No SWPPP on file with City or grading permit.

Note: Resolved, permit issued.

Development Department

Will need to coordinate the development of Polk, which includes installation of Water and Sewer as well as a greenway in a coordinated fashion and assure the ROW width is sufficient to accommodate.

May need to coordinate a vacation for the street vacations identified with the Final plat submittal.

Need to identify what improvements will be required on Pershing and when they may be required.

Drainage Engineering

The floodplain and floodway do not match the FEMA FIRM (LOMR 10-08-0553P).

Note: Resolved, City Drainage Engineer and AVI have agreed upon proper floodplain and floodway data to be used and will be identified on the Final Plat.

General Engineering

The vacations of Cheyenne St. and Van Buren Ave. need to be addressed in greater detail with the Final Plat submittal. Pursuant to Section 2.1.4.b.3 of the UDC and W.S. 15-4-305, the written consent of all affected property owners is required. The City Engineer's Office does not recommend vacating only half of the rights-of-way as this map could imply. Based on discussions with AVI, a 10' wide drainage & utility easement will be required along the Polk frontage to facilitate the street and Greenway construction along Polk.

Traffic Engineering

1. A Transportation Worksheet to determine TIA/TIS requirements was provided as required (ref. Article 3, Section 3.1.1.c, UDC). The request for TIS Waiver was signed as required. The number of trips generated is less than the threshold amount which triggers a TIA or TIS. The waiver request is hereby granted. If development occurs in a manner not in keeping with the land use assumptions contained in the Worksheet for Polk Addition, a Transportation Impact Analysis or Study shall be required.
2. A driveway approach for minor arterial design street type should be radial curb (ref. Article 4, Section 4.3.4, UDC). A driveway approach for local street type should be flared curb. Design standards for intersections of public streets can be utilized where high speed or

- frequent vehicle access is expected (generally access points with anticipated ADT more than 500 vehicles).
3. The Sight Distance Triangle shall maintain adequate, unobstructed sight distance in both directions from the access driveway (ref. Article 4, Section 4.3.5.c, UDC). This triangular space is to be kept free from all obstructions to vision, including plant materials and vegetation, between the heights of 2.5 and 12 feet above the street grades. The sight distance triangle should be calculated utilizing criteria for controlled intersections. Site triangles should be shown on the site plan and the landscape plan.
 4. Curb ramps meeting ADA Accessibility Standards shall provide a direct, non-diverted approach along the block, into the pedestrian crossing (ref. Article 4, Section 4.3.5.e, UDC).
 5. Appropriate access design is highly dependent on context, specific transportation goals, and site variables (ref. Article 4, Section 4.3.6.b, UDC). Alternative standards that better meet the intent of Block and Lot Access may be approved based on a Transportation Impact Study. Trip generation and trip distribution as well as ADT information is needed to design the driveway approach for type, width, and throat length. The driveway throat length is typically defined as the distance measured from the back of sidewalk or stop bar exiting the site to the first point of conflict in the driveway. Primary driveways into mixed use, commercial and employment centers shall be of sufficient length to allow vehicles to enter and not be impacted from on-site conflicts in which traffic backs out onto the street system. Parking spaces backing into the driveway throat will impact the internal circulation and could result in stacking of vehicles on the roadway and should be avoided. The access design, number, location, width and driveway length shall meet with the approval of the City Engineer.
 6. Lot access width shall be limited based upon the lot frontages subject to the standards in Table 4-13 (ref. Article 4, Section 4.3.6.c, UDC). Standards for specific street classifications or street design types may supersede these general allowances.
 7. Lot access points shall be separated from streets and other access points along a single block face and from the street edge of the intersection as specified for each specific street design type (ref. Article 4, Section 4.3.6.d, UDC). The minimum access spacing for minor arterial streets from a property corner or another access is 330 feet. The minimum access spacing for Commercial/Industrial local streets from a property corner or another access is 100 feet and 30 feet, respectively.
 8. At Pedestrian crossings at access points that are greater than 22 feet wide, a crosswalk differentiated from vehicle surfaces by different materials, texture or color, or a speed table should be used (ref. Article 4, Section 4.3.6.e.2, UDC).
 9. Pedestrian crossings at access points where high speed or frequent vehicle access is expected (generally access points with anticipated ADT more than 500 vehicles), lot access at street grade may be allowed provided design standards for intersections of public streets, including intersection design are used (ref. Article 4, Section 4.3.6.e.3, UDC).
 10. Parking or loading areas that require backing onto a public street are prohibited (ref. Article 4, Section 4.3.6.g.5, UDC).
 11. Sight distance requirements for street intersections should be applied to driveways where volumes and speed of traffic in the street and volumes for the access point warrant treating it as a street intersection (ref. Article 4, Section 4.3.6.g.5, UDC).
 12. The location of access to properties on opposite sides of collector roadways shall be coordinated so they do not interfere with one another (ref. Article 4, Section 4.3.7.e, UDC). Driveway approaches directly opposite each other are desirable. Show opposing driveways on the site plan.
 13. The builder and/or the developer are responsible for the construction of sidewalks (ref.

Article 4, Section 4.5.2.b, UDC).

14. All mandatory signage and striping (ref. Article 4, Section 4.5.2.d, UDC) are to be shown in the project civil improvement drawings in conformity with the City of Cheyenne Standards and the Manual on Uniform Traffic Control Devices (MUTCD).

15. All situations where a sidewalk or pedestrian facility intersects with an internal vehicle circulation shall be treated by one of the following manners: (1) the material, layout and grade of the pedestrian access shall be continuous as it crosses the grade of the driveway; or (2) a crosswalk differentiated from vehicle surfaces by different materials, texture or color, or a speed table (ref. Article 6, Section 6.2.3.a, UDC).

16. The number, location, dimension, and signing of accessible parking stalls shall be in accordance with the current ADA Standards for Accessible Design (ref. Article 6, Section 6.2.4.d, UDC).

17. Stall layout width and length and aisle width for angle parking is as specified in Article 6 of the UDC (ref. Article 6, Section 6.2.8.b, UDC).

18. All parking, circulation and loading areas shall be graded for proper drainage and be paved (ref. Article 6, Section 6.2.8.c, UDC). The maximum grade shall not exceed 8%. The maximum desirable grade in any direction is 5%.

19. As part of the project, the applicant shall provide in sufficient detail the project's proposal to provide pedestrian and bicycle connections within the site to the local offsite pedestrian and bicycle destinations in close proximity to the project (ref. Appendix E, UDC). This assessment shall describe the directness of the route to and from various parts of the project, the continuity of the pedestrian and bicycle system to reach these destinations and the design elements to assure safe access.

20. Easements shall be graded to facilitate the passage of sewer maintenance vehicles without high centering. Paved or gravel access shall be provided to all manholes that are to be owned and maintained by the BOPU, which are on sewer mains that are twelve (12) inches in diameter or smaller. The paved or gravel access shall be capable of supporting an H20 vehicle under all weather conditions (Section 02700, City of Cheyenne & BOPU Construction Standards and Specifications).

Note: Items 2-20 to be addressed during the site plan review process.

Environmental Health Department

Property is in the 201 Facilities Management Area and contiguous to the city corporate boundaries. Public sewer will be required for sanitary facilities. Sanitary sewer should be designed to accommodate future connections by other homes in the immediate vicinity.

Fire Department

508.5 Fire hydrant systems.

Fire hydrant systems shall comply with Sections 508.5.1 through 508.5.6.

508.5.1 Where required.

Where a portion of the facility or building hereafter constructed or moved into or within the jurisdiction is more than 400 feet (122 m) from a hydrant on a fire apparatus access road, as measured by an approved route around the exterior of the facility or building, on-site fire hydrants and mains shall be provided where required by the fire code official.

Exceptions:

1. For Group R-3 and Group U occupancies, the distance requirement shall be 600 feet (183 m).

2. For buildings equipped throughout with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1 or 903.3.1.2, the distance requirement shall be 600 feet

(183 m).

508.5.2 Inspection, testing and maintenance.

Fire hydrant systems shall be subject to periodic tests as required by the fire code official. Fire hydrant systems shall be maintained in an operative condition at all times and shall be repaired where defective. Additions, repairs, alterations and servicing shall comply with approved standards.

508.5.3 Private fire service mains and water tanks.

Private fire service mains and water tanks shall be periodically inspected, tested and maintained in accordance with NFPA 25 at the following intervals:

1. Private fire hydrants (all types): Inspection annually and after each operation; flow test and maintenance annually.
2. Fire service main piping: Inspection of exposed, annually; flow test every 5 years.
3. Fire service main piping strainers: Inspection and maintenance after each use.

508.5.4 Obstruction.

Posts, fences, vehicles, growth, trash, storage and other materials or objects shall not be placed or kept near fire hydrants, fire department inlet connections or fire protection system control valves in a manner that would prevent such equipment or fire hydrants from being immediately discernible. The fire department shall not be deterred or hindered from gaining immediate access to fire protection equipment or fire hydrants.

508.5.5 Clear space around hydrants.

A 3-foot (914 mm) clear space shall be maintained around the circumference of fire hydrants except as otherwise required or approved.

508.5.6 Physical protection.

Where fire hydrants are subject to impact by a motor vehicle, guard posts or other approved means shall comply with Section 312.

All hydrant locations shall comply with Appendix "C" of the International Fire Code.

Fire Access Roads shall comply with Appendix "D" of the International Fire Code.

SECTION 503

FIRE APPARATUS ACCESS ROADS

503.1 Where required.

Fire apparatus access roads shall be provided and maintained in accordance with Sections 503.1.1 through 503.1.3.

503.1.1 Buildings and facilities.

Approved fire apparatus access roads shall be provided for every facility, building or portion of a building hereafter constructed or moved into or within the jurisdiction. The fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet (45 720 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility.

Exception: The fire code official is authorized to increase the dimension of 150 feet (45 720 mm) where:

1. The building is equipped throughout with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3.
2. Fire apparatus access roads cannot be installed because of location on property, topography, waterways, nonnegotiable grades or other similar conditions, and an approved alternative means of fire protection is provided.
3. There are not more than two Group R-3 or Group U occupancies.

503.1.2 Additional access.

The fire code official is authorized to require more than one fire apparatus access road based

on the potential for impairment of a single road by vehicle congestion, condition of terrain, climatic conditions or other factors that could limit access.

503.1.3 High-piled storage.

Fire department vehicle access to buildings used for high-piled combustible storage shall comply with the applicable provisions of Chapter 23.

503.2 Specifications.

Fire apparatus access roads shall be installed and arranged in accordance with Sections 503.2.1 through 503.2.7.

503.2.1 Dimensions.

Fire apparatus access roads shall have an unobstructed width of not less than 20 feet (6096 mm), except for approved security gates in accordance with Section 503.6, and an unobstructed vertical clearance of not less than 13 feet 6 inches (4115 mm).

503.2.2 Authority.

The fire code official shall have the authority to require an increase in the minimum access widths where they are inadequate for fire or rescue operations.

503.2.3 Surface.

Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus and shall be surfaced so as to provide all-weather driving capabilities.

503.2.4 Turning radius.

The required turning radius of a fire apparatus access road shall be determined by the fire code official.

503.2.5 Dead ends.

Dead-end fire apparatus access roads in excess of 150 feet (45 720 mm) in length shall be provided with an approved area for turning around fire apparatus.

503.2.7 Grade.

The grade of the fire apparatus access road shall be within the limits established by the fire code official based on the fire department's apparatus.

503.3 Marking.

Where required by the fire code official, approved signs or other approved notices shall be provided for fire apparatus access roads to identify such roads or prohibit the obstruction thereof. Signs or notices shall be maintained in a clean and legible condition at all times and be replaced or repaired when necessary to provide adequate visibility.

503.4 Obstruction of fire apparatus access roads.

Fire apparatus access roads shall not be obstructed in any manner, including the parking of vehicles. The minimum widths and clearances established in Section 503.2.1 shall be maintained at all times.

503.5 Required gates or barricades.

The fire code official is authorized to require the installation and maintenance of gates or other approved barricades across fire apparatus access roads, trails or other access ways, not including public streets, alleys or highways.

503.5.1 Secured gates and barricades.

When required, gates and barricades shall be secured in an approved manner. Roads, trails and other access ways that have been closed and obstructed in the manner prescribed by Section 503.5 shall not be trespassed on or used unless authorized by the owner and the fire code official.

Exception: The restriction on use shall not apply to public officers acting within the scope of duty.

503.6 Security gates.

The installation of security gates across a fire apparatus access road shall be approved by the

fire chief. Where security gates are installed, they shall have an approved means of emergency operation. The security gates and the emergency operation shall be maintained operational at all times.

Note: These items will be addressed during the site plan review process.

Metropolitan Planning Organization

PlanCheyenne indicates this area as Urban Residential. The area directly to the west, across Polk Ave. is indicated as Mixed Use Commercial Emphasis. Since this area is located adjacent to the future Greenway, an important pedestrian amenity, a more varied commercial usage, such as a mix of retail, service, light industrial and residential would be encouraged. UDC Article 5, 5.4.6

Parks and Recreation

Dedicate an additional 10' of ROW along Polk Avenue to accommodate the Greenway. Developer will be required to reimburse the City for 50% of that portion of Polk Avenue road construction costs adjacent to the project property to include any access approaches.

REVIEWING AGENCIES WITH NO COMMENT:

Century Link
County Assessor
Engineering Tech/GIS
Optimum
Suncor Pipeline
Urban Planning

REVIEWING AGENCIES NOT RESPONDING:

Building Department
Cheyenne Light Fuel & Power
Dept of Energy/WAPA
High West Energy
Phillips Pipeline

OTHER COMMENTS RECEIVED:

None

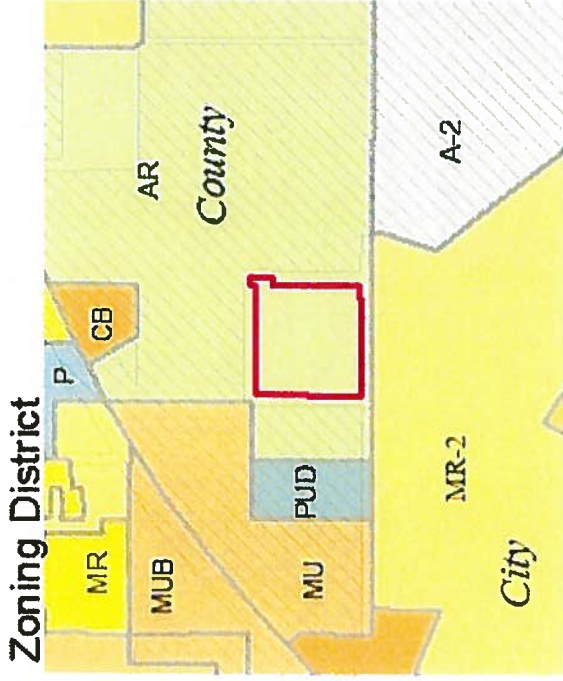
Encl: Staff Aerial Map
Revised Preliminary Plat Map

cc: Applicant
Agent
Owner
Files: POLK-P, UDC-13-00130

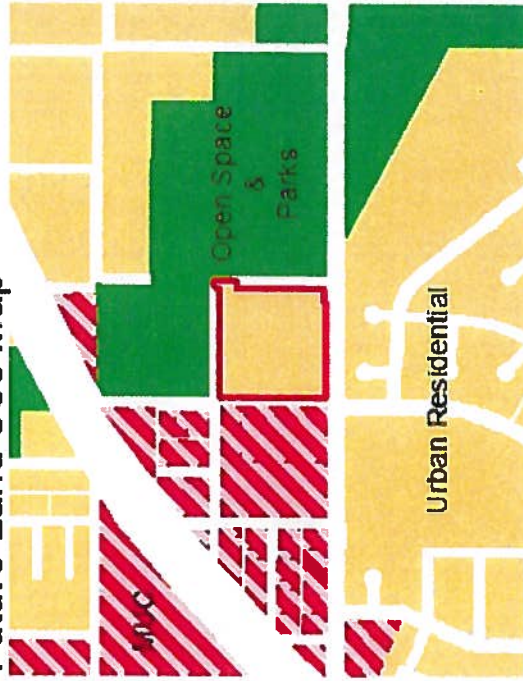
Polk Addition

UDC-13-00130

Preliminary Plat

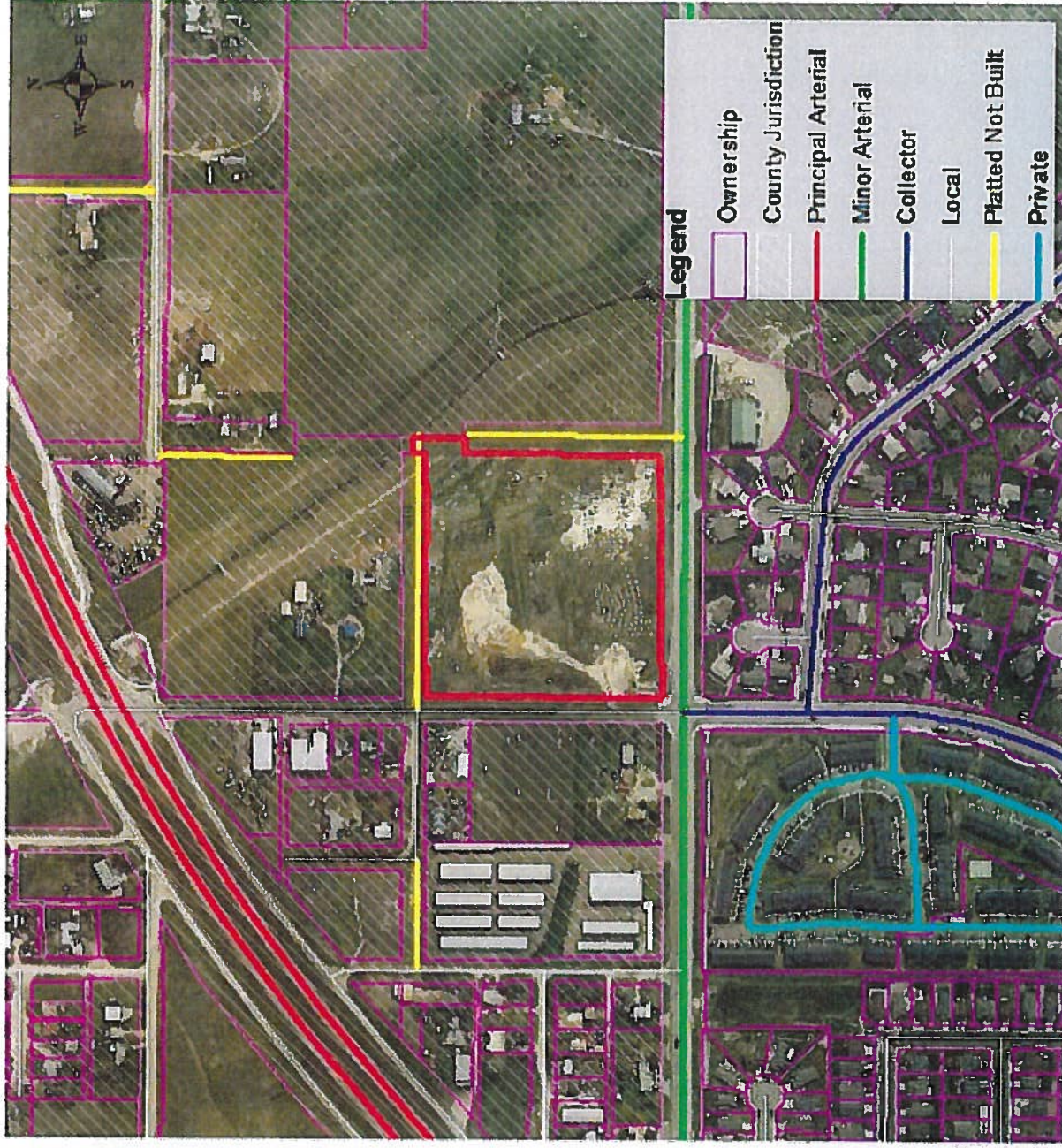


Future Land Use Map



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGS) Program and is for display purposes only. The CLCCGS involves its ownership and governmental authority in allowing access to or use of this data.

2010 Aerial

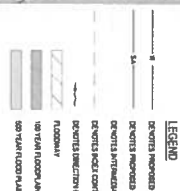
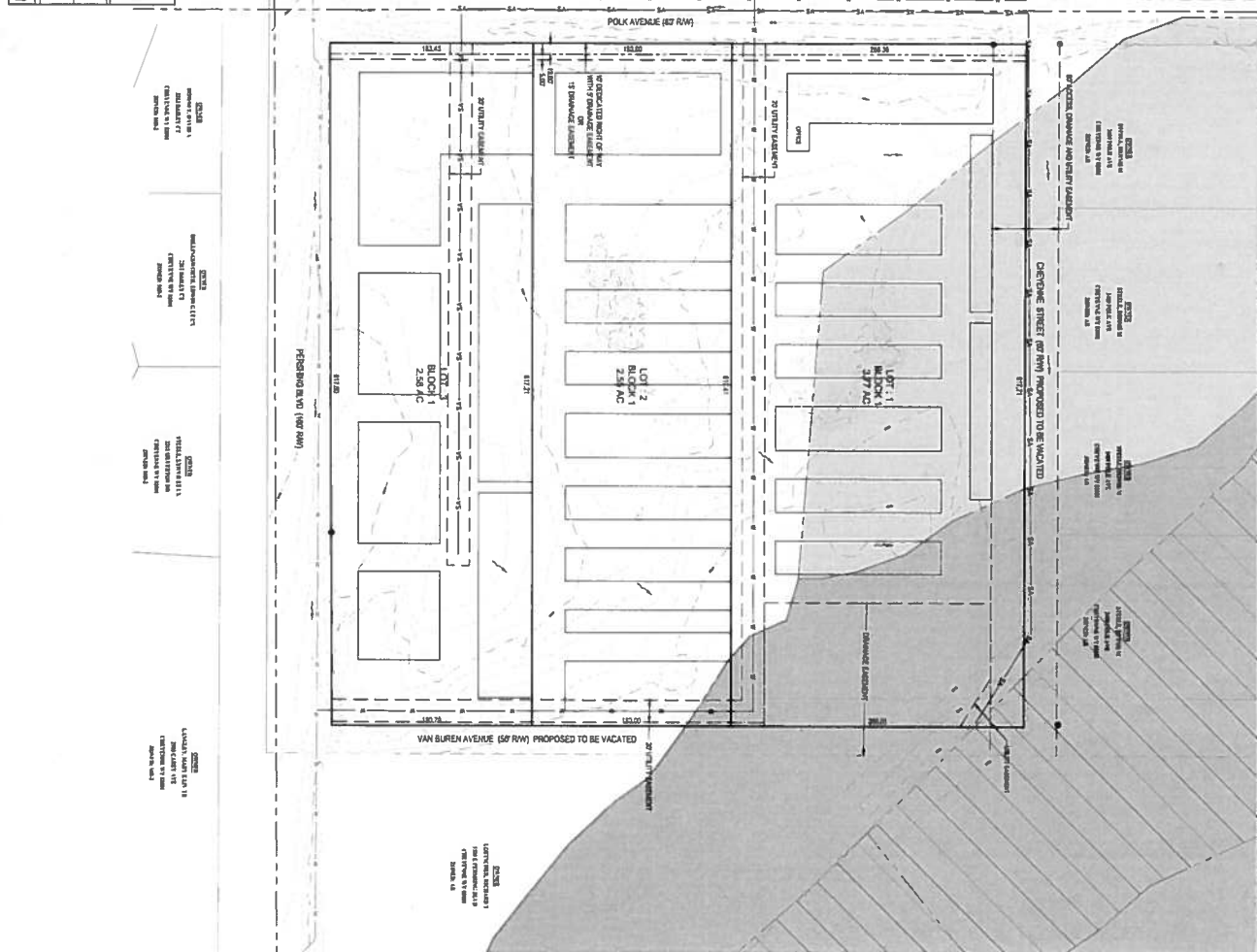


Legend

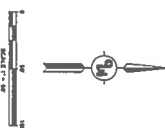
- Ownership
- County Jurisdiction
- Principal Arterial
- Minor Arterial
- Collector
- Local
- Platted Not Built
- Private



Created by Donna Ferguson: 4/25/2013



- [illegible]



PRIMITIVE PLAT or POLK ADDITION

A REPLAT OF A PORTION OF TRACTS 14-5-148, SUNNYSIDE ADDITION,
FIFTH FILING, A REPLAT OF A PORTION OF VACATED VAN BUREN
AVENUE, A REPLAT OF A PORTION OF VACATED CHEYENNE STREET AND
BEING SITUATED IN THE SW/4 SECTION 26, TOWNSHIP 14 NORTH
RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED MARCH, 2012

[illegible]

PREPARED FOR:
DOUG WALKER
6908 FOXGLOVE ROAD
CHEYENNE WY 82009

PROJECT	POLK ADDITION
DRAWING TITLE	PRELIMINARY PLAT

DATE	MARCH 2013
ISSUED BY	OUU
RECEIVED BY	DE
CHECKED BY	
DOE NO.	3452
DRAWING NO.	1 OF 1